

Smt. Kusum Dubey v. U.P. Power Corporation Ltd. And Others

High Court of Judicature at Allahabad · Division Bench · 4 February 2016 · Writ-C No. 27664 of 2012 · **Writ dismissed; liberty to proceed under clause 6.5.**

HEADNOTE

A consumer disputing the correctness of a bill issued by U.P. Power Corporation Ltd. was held to have a remedy under clause 6.5 of the Electricity Supply Code, 2005. The writ was dismissed with that liberty; any interim order stood discharged. The Court did not examine the bill on merits.

FACTUAL SUMMARY

Smt. Kusum Dubey invoked the High Court's writ jurisdiction in 2012 against U.P. Power Corporation Ltd. and others. On 30 May 2012 two days were granted to obtain instructions. On 3 July 2012, after instructions were obtained, the Corporation was told to place them on affidavit, with a rejoinder to follow. When a later Division Bench took up the petition on 4 February 2016, the controversy was treated as a dispute over the correctness of a bill issued by the Corporation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute — alternate remedy

HOLDING

If the petitioner disputes the correctness of a bill issued by U.P. Power Corporation Ltd., the remedy is under clause 6.5 of the Electricity Supply Code, 2005; the writ petition is dismissed with that liberty and any interim order stands discharged. ¶ 3

FLAG Court called clause 6.5 an 'appeal' and did not specify 6.5(a), 6.5(b) or 6.5B.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing the correctness of a bill issued by U.P. Power Corporation Ltd. was held to have a remedy under clause 6.5 of the Electricity Supply Code, 2005. The writ was dismissed with that liberty; any interim order stood discharged. The Court did not examine the bill on merits. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Merits of the bill were not examined; the petitioner was relegated to clause 6.5. ¶ 3